

Court No. - 3

Case :- WRIT - C No. - 18443 of 2022

Petitioner :- Jainuddin

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Abhishek Kumar Singh

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Abhishek Kumar Singh, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Alok Mishra, learned counsel for the respondent No.2.

This writ petition has been filed praying for the following relief:

"(I) Issue a writ, order or direction in the nature of certiorari quashing the impugned R.C. (recovery certificate) Letter no.3696, SI. No.479, dated 26.03.2022 issued by the respondent no.3 i.e. Tahsildar, Tahsil- Sadar, District Hathras against the petitioner for the recovery of Rs.1,53,397/-(One lakh Fifty Thousand Three Hundred Ninety Seven), as electricity dues from the petitioner.

(II) Issue a writ, order or direction in the nature of mandamus directing the respondents restraining them not to proceed further with the impugned R.C. (recovery certificate) Letter no.3696, SI. No.479, dated 26.03.2022 issued by the respondent no.3 i.e. Tahsildar, Tahsil- Sadar, District Hathras against the petitioner for the recovery of Rs.1,53,397/-(One lakh Fifty Thousand Three Hundred Ninety Seven), during the pendency of the present writ petition before this Hon'ble Court."

Sri Alok Mishra, learned counsel for the respondent No.2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 7.7.2022

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